MUTUAL NON-DISCLOSURE AGREEMENT

Acme Corporation & Apex Ventures LLC · Confidential Legal Document

1. PURPOSE AND DEFINITION

The Disclosing Party and Receiving Party wish to explore an enterprise strategic AI collaboration. 'Confidential Information' refers to any proprietary software, architecture diagrams, product roadmaps, and business negotiations disclosed in tangible or electronic format.

2. OBLIGATIONS OF MUTUAL NON-DISCLOSURE

Each party agrees to safeguard the Confidential Information of the other using the same standard of care it uses for its own confidential assets, being not less than reasonable care. Information may be shared only with employees having a bona fide need to know.

3. PERMITTED COMPELLED DISCLOSURES

A Receiving Party may disclose Confidential Information to the extent required by a valid order of a court or regulatory authority, provided it gives prompt written notice to the Disclosing Party to allow an opportunity to seek a protective order.

4. LIMITATION OF LIABILITY AND DAMAGES

Neither party's aggregate liability under this NDA shall exceed $250,000, except that liability for gross negligence, willful misconduct, or unauthorized public disclosure of trade secrets shall not be limited by this cap.

5. TERM AND RETURN OF MATERIALS

This Agreement remains in effect for two (2) years. Upon written request, each party shall promptly return or certify the secure destruction of all tangible copies of Confidential Information.

6. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law principles. Any dispute shall be resolved in Wilmington, Delaware.

IN WITNESS WHEREOF, Acme Corporation and Apex Ventures LLC have executed this Mutual NDA.
Signed by: Sarah Jenkins, VP Legal (Acme) | Michael Vance, Managing Partner (Apex)